Authorities & Penal Code § 679.10 Cheat Sheet

Matter 24 — Newanforbi v. Serrato, N.D. Cal. 4:26-cv-05953-ASK

CORE AUTHORITIES THE OPP RELIES ON (CHECK THESE)

Screening / pro se / 12(b)(6)
- 28 U.S.C. § 1915; Lopez v. Smith; Hebbe v. Pliler; Erickson v. Pardus
- Ashcroft v. Iqbal; Bell Atl. Corp. v. Twombly
- Krishnan Dkt. 5 (June 29, 2026) — IFP granted; complaint sufficient

U-visa / certification / California statute
- 8 U.S.C. § 1101(a)(15)(U); 8 U.S.C. § 1184(p); 8 C.F.R. § 214.14
- Cal. Penal Code § 679.10 (esp. (g), (h), (i), (k)); AB 1261 (eff. Jan. 1, 2024)
- Perez Perez v. Wolf, 943 F.3d 853 (9th Cir. 2019) — federal discretion
- Catholic Charities CYO v. Chertoff, 622 F. Supp. 2d 865 (N.D. Cal. 2008) — pre-§679.10; Opp distinguishes

Due process
- County of Sacramento v. Lewis; Mathews v. Eldridge; Goldberg v. Kelly
- Shanks v. Dressel (non-arbitrary decisionmaking / mandatory duties theme)
- Withrow v. Larkin (bias / structural concern themes as argued)

Retaliation
- Mt. Healthy; Hartman v. Moore; Nieves v. Bartlett (context)
- Ford v. City of Yakima, 706 F.3d 1188 (9th Cir. 2013) — but-for
- Perry v. Sindermann; Bd. of Cnty. Comm'rs v. Umbehr — unconstitutional conditions / discretionary benefits
- Borough of Duryea v. Guarnieri; Capp v. Cnty. of San Diego; Pratt v. Rowland

Strike / remedies / QI / leave
- Whittlestone, Inc. v. Handi-Craft Co., 618 F.3d 970 (9th Cir. 2010)
- Winter v. NRDC (Defendant's PI cite — Opp says wrong vehicle)
- Ex parte Young; Pearson v. Callahan; Hope v. Pelzer; District of Columbia v. Wesby
- Kay v. Ehrler (pro se fees)
- Smith v. Wade (punitive)
- Lopez / Garity / Lathus (leave to amend)

LOCAL RULES / NOTICE
- Civil L.R. 7-2(a) (35 days); 7-3(a) (opposition 14 days before hearing)
- Hearing noticed Sep. 16, 2026 1:30 p.m.; Opp deadline Sep. 2, 2026; execution date on Opp: Aug. 27, 2026

STATUTORY PRESSURE POINTS TO VERIFY
- Does § 679.10(g)/(i) actually require signing when victim + helpfulness are found, or only require processing/explanation while leaving the findings discretionary?
- What does subdivision (k) do to Defendant's "no charges = civil tort only" argument?
- Does the helpfulness presumption apply when CHP never requested cooperation?